



US0D1092204S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,204 S**
Sill et al. (45) **Date of Patent:** **** Sep. 9, 2025**

(54) **FOOD CARTON**

(71) Applicant: **Inno-Pak, LLC**, Delaware, OH (US)

(72) Inventors: **Jonathan D. Sill**, Delaware, OH (US);
Steven A. Mayer, Indianapolis, IN (US)

(73) Assignee: **Inno-Pak, LLC**, Delaware, OH (US)

(**) Term: **15 Years**

(21) Appl. No.: **29/895,184**

(22) Filed: **Jun. 19, 2023**

Related U.S. Application Data

(62) Division of application No. 29/838,831, filed on May 16, 2022, now Pat. No. Des. 999,057, which is a division of application No. 29/708,952, filed on Oct. 10, 2019, now Pat. No. Des. 955,876, which is a division of application No. 29/644,833, filed on Apr. 20, 2018, now Pat. No. Des. 876,951.

(51) **LOC (15) Cl.** **09-03**

(52) **U.S. Cl.**

USPC **D9/433**

(58) **Field of Classification Search**

USPC D9/414–418, 419, 420–425, 430–433,
D9/454–456, 457, 711, 713, 737, 756,
D9/758, 759, 760; D7/601, 602;
D3/272–274; D20/22, 28
CPC ... B65D 5/00; B65D 5/02; B65D 5/18; B65D
5/20; B65D 5/2057; B65D 5/546; B65D
5/244; B65D 77/00; B65D 77/2024;
G01S 13/08

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D11,270 S 7/1879 Kaufmann et al.
D29,094 S 7/1898 Barkley

D29,593 S 11/1898 Datz
D35,615 S 1/1902 Stecher
1,230,552 A 6/1917 Bain
1,365,250 A 1/1921 Labombarde

(Continued)

FOREIGN PATENT DOCUMENTS

CA 138326 * 7/2011

OTHER PUBLICATIONS

Biodegradable Food Packaging Boxes Takeaway Bento Lunch Box Kraft Paper. Date first available: Apr. 5, 2023. Site visited: Feb. 10, 2025. Available online: <https://www.tablewarebio.com/sale-35513085-biodegradable-food-packaging-boxes-takeaway-bento-lunch-box-kraft-paper.html> (Year: 2023).*

(Continued)

Primary Examiner — Catherine S Posthauer

Assistant Examiner — Joan E. Diehl

(74) *Attorney, Agent, or Firm* — Ward and Smith, P.A.;
Ryan K. Simmons

(57)

CLAIM

The ornamental design for a food carton, as shown and described.

DESCRIPTION

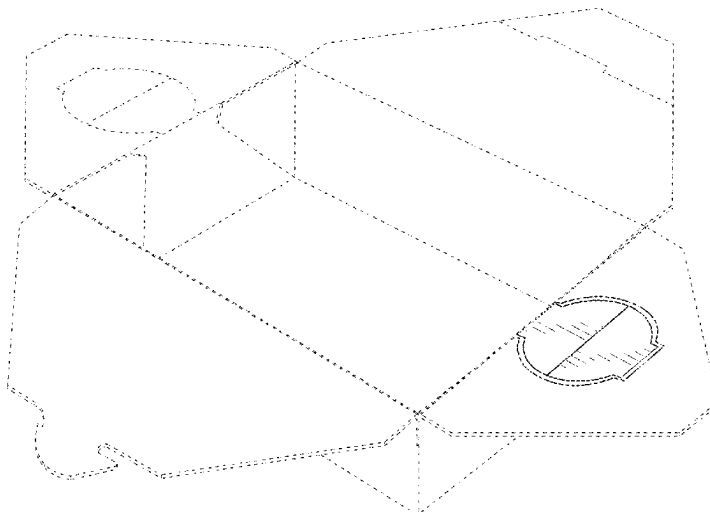
FIG. 1 is a perspective view of a food carton showing a new design;

FIG. 2 is a perspective view of the food carton of FIG. 1 showing an alternate embodiment; and,

FIG. 3 is a perspective view of the food carton of FIG. 1 showing an alternate embodiment.

In the drawings the dotted lines are for the purpose of illustrating perforations and form part of the claimed design; the dot-dash lines depict the claim boundary and form no part of the claim; and the dash-dash broken lines are for the purpose of illustrating parts of the food carton that form no part of the claimed design.

1 Claim, 3 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

1,407,483 A	2/1922	Rike	D531,498 S	11/2006	Fluegel et al.
D73,127 S	7/1927	Greve	D542,129 S	5/2007	Moorman
1,908,251 A	5/1933	Inman	D549,456 S	8/2007	Dretzka
1,941,514 A	1/1934	Sutherland	D549,457 S	8/2007	Dretzka
1,950,934 A	3/1934	Shearer	D557,047 S	12/2007	Dretzka
1,973,633 A	9/1934	Kulpinski	D561,023 S	2/2008	Jacxsens
1,993,153 A	3/1935	Eggebrecht	D561,408 S	2/2008	Marsh
1,993,200 A	3/1935	Wylie	D562,125 S	2/2008	Kienemund-Paroll
2,015,413 A	9/1935	Snyder	D563,673 S	3/2008	Dretzka
D99,893 S	6/1936	Rike	D567,671 S	4/2008	Say Ulin
D100,025 S	6/1936	Jepson	D568,765 S	5/2008	Miles
2,042,796 A	6/1936	Murray	D573,408 S	7/2008	Lovett
2,062,949 A	12/1936	Taylor	D576,482 S	9/2008	DeBusk
2,083,449 A	6/1937	Inman	D578,387 S	10/2008	Lovett
2,133,701 A	10/1938	Holmes	D582,268 S	12/2008	Zanaletti
2,138,680 A	11/1938	Siewert	D584,108 S	1/2009	Olsson
2,142,131 A	1/1939	Inman	D590,596 S	4/2009	Dretzka
2,266,649 A	12/1941	Marshall	D595,155 S	6/2009	Larson
2,336,655 A	12/1943	Tobey	D596,027 S	7/2009	Kalberer
2,341,762 A	2/1944	Conklin	D596,448 S	7/2009	Nolan
2,639,080 A	5/1953	Anderson, Jr.	D596,449 S	7/2009	Nolan
2,870,950 A	1/1959	Inman	D596,903 S	7/2009	Willis et al.
3,027,063 A	3/1962	Zastrow	7,565,997 B1 *	7/2009	Lim B65D 5/2047 229/120.08
D194,246 S	12/1962	Engelmann	D678,762 S	3/2013	Cooper
D200,249 S	2/1965	Hancock	D678,779 S	3/2013	Lee
D200,500 S	3/1965	Schroeder	D679,950 S	4/2013	Cooper
D211,564 S	7/1968	Bailey	D682,085 S	5/2013	Hannant et al.
D217,441 S	5/1970	Kanaga	D682,684 S	5/2013	Walter et al.
D256,096 S	7/1980	Ganz	D684,465 S	6/2013	Vernon et al.
D260,604 S	9/1981	Otto	D684,858 S	6/2013	Sill
D280,290 S	8/1985	Bakus	D688,552 S	8/2013	Vernon et al.
D305,304 S	1/1990	McCaleb	D688,921 S	9/2013	Miros et al.
D306,699 S	3/1990	Michau	D688,939 S	9/2013	Pearson et al.
5,118,034 A	6/1992	Tsao	D691,035 S	10/2013	Sill
D329,376 S	9/1992	Burd	D693,180 S	11/2013	Peterson et al.
5,322,182 A	6/1994	Fritz	D693,215 S	11/2013	Sill
D352,203 S	11/1994	Campbell et al.	D693,216 S	11/2013	Sill
5,411,204 A *	5/1995	DeMay B65D 5/244 229/114	D693,217 S	11/2013	Sill
D363,856 S	11/1995	Westbrooks, Jr.	D693,218 S	11/2013	Sill
D366,212 S	1/1996	Jones	D693,646 S	11/2013	Katterheinrich et al.
D367,172 S	2/1996	Brightbill et al.	D693,677 S	11/2013	Pearson et al.
D369,104 S	4/1996	Heiskell et al.	D693,679 S	11/2013	Sill
D371,840 S	7/1996	Leight	D695,101 S	12/2013	Keberlein et al.
D373,723 S	9/1996	Healey	D695,104 S	12/2013	Sill
D382,201 S	8/1997	Brondyke et al.	D695,107 S	12/2013	Clements
D394,385 S	5/1998	Laughlin	D695,575 S	12/2013	Katz
D395,547 S	6/1998	Sussman	D695,605 S	12/2013	Johnson
D396,570 S	8/1998	Lohmeyer	D697,789 S	1/2014	Gerdes et al.
D397,294 S	8/1998	Sauls	D710,691 S	8/2014	Genender
D398,526 S	9/1998	Schwarz et al.	D712,153 S	9/2014	Lee
5,873,220 A	2/1999	Haraldsson et al.	D714,638 S	10/2014	Mohn et al.
D409,908 S	5/1999	Besana	8,939,350 B2	1/2015	Valencia
D412,398 S	8/1999	Watabe	D726,533 S	4/2015	Northrup
D423,697 S	4/2000	Maxwell	D727,732 S	4/2015	Petty
D440,118 S	4/2001	Claffy et al.	D728,359 S	5/2015	Iwegbu
D442,859 S	5/2001	Hirschey	D728,364 S	5/2015	Baker et al.
D444,703 S	7/2001	Allasia	D730,178 S	5/2015	Fullan
D448,130 S	9/2001	Wagner	D731,325 S	6/2015	Loessin
D451,769 S	12/2001	Stanos et al.	D735,576 S	8/2015	Aldridge
D454,495 S	3/2002	Bryan et al.	D737,820 S	9/2015	Yu et al.
D460,689 S	7/2002	Robinson	D744,824 S	12/2015	Holley, Jr.
D461,406 S	8/2002	Iacovelli	9,211,970 B2	12/2015	Hubbard, Jr. et al.
D467,798 S	12/2002	Cohon	9,216,837 B2	12/2015	Hubbard et al.
D484,364 S	12/2003	Bailey et al.	D746,643 S	1/2016	Kraemer
D484,799 S	1/2004	Hoffman et al.	D752,429 S	3/2016	Mayer
D495,251 S	8/2004	Zack	9,309,023 B2	4/2016	Hubbard, Jr. et al.
D497,309 S	10/2004	Nordland et al.	D758,184 S	6/2016	Tu et al.
D504,813 S	5/2005	Chou	D763,706 S	8/2016	Shum et al.
D509,733 S	9/2005	Jongens	D764,276 S	8/2016	Das et al.
D512,836 S	12/2005	Marnell, II	D764,281 S	8/2016	Mayer
D519,366 S	4/2006	Epstein	D767,409 S	9/2016	Nickell
D519,830 S	5/2006	Yocum	D769,114 S	10/2016	Montemayor et al.
D521,376 S	5/2006	Mosto	D770,270 S	11/2016	Mcgarry et al.
D521,862 S	5/2006	Siethoff et al.	D771,486 S	11/2016	Mayer
			D772,053 S	11/2016	Mayer
			D772,700 S	11/2016	Ladd et al.
			D775,946 S	1/2017	Ghini et al.
			D777,029 S	1/2017	Stratton

(56)

References Cited

U.S. PATENT DOCUMENTS

D778,115	S	2/2017	Strachan	
D778,155	S	2/2017	Strachan	
D778,722	S	2/2017	Strachan	
D784,769	S	4/2017	Beckman et al.	
D786,621	S	5/2017	Davis	
D821,870	S	7/2018	Fly	
10,017,290	B2 *	7/2018	Faulkner	B65D 5/2057
10,426,282	B1 *	10/2019	Hamilton	G01S 13/08
D876,951	S *	3/2020	Sill	D9/431
D900,638	S	11/2020	Wettlaufer	
D932,297	S	10/2021	Mcgrath	
D943,412	S	2/2022	Mayer	
D955,225	S	6/2022	Epstein et al.	
D955,875	S	6/2022	Sill et al.	
D955,876	S *	6/2022	Sill	D9/431
D961,380	S	8/2022	Holloway	
D999,057	S *	9/2023	Sill	D9/431
D1,020,457	S *	4/2024	Ng	D9/433
D1,030,475	S *	6/2024	Epstein	D9/761
D1,060,029	S *	2/2025	Mayer	D9/431
2004/0182916	A1 *	9/2004	Roseth	B65D 5/546
				229/114
2013/0075392	A1	3/2013	Learn et al.	
2014/0263353	A1	9/2014	Bell	
2014/0263595	A1	9/2014	Pantelleria	
2014/0263599	A1	9/2014	Robertson	
2014/0263600	A1	9/2014	Valencia	
2016/0107830	A1	4/2016	Baryshyan	
2019/0322409	A1	10/2019	Sill et al.	
2021/0053718	A1	2/2021	Bautista Fernandez	
2022/0024633	A1	1/2022	Tsao	

OTHER PUBLICATIONS

Contora Food Box/Dip Holder | Dyanec. Date first available: 2025. Site visited: Feb. 13, 2025. Available online: <https://dyanec.com.cy/product/contora-food-boxdip-holder> (Year: 2025).*

Disposable Restaurant Kraft Paper Packaging Box Take Away Food Container with Ventilation Hole. Date first available: Sep. 27, 2022. Site visited: Feb. 10, 2025. Available online: (Year: 2022).*

Disposable Food Container: Announced [Sep. 10, 2019; online]. Retrieved [Apr. 29, 2023]. URL: <https://www.amazon.com/Pack-Friendly-Disposable-Kraft-Container/dp/B07XQHZYKY?th=1> (Year 2019).

Uline, Paper Take Out Box: Announced [Date Not Available; online]. Retrieved [Apr. 29, 2023]. URL: <https://www.uline.com/Product/Detail/S-22406/Food-Containers/Paper-Take-Out-Boxes-66-oz> (Year: 2023).

Kraft Takeout Box: Announced [Apr. 27, 2015; online]. Retrieved [Apr. 29, 2023]. URL: <https://www.amazon.com/Royal-Folded-Takeout-Box-Case/dp/B018GOU6SC?th=1> (Year: 2015).

Innobox: Announced [Apr. 14, 2020; online]. Retrieved [Apr. 29, 2023]. URL: <https://www.innopak.com/products/innobox-edge/> (Year: 2020).

Fries Holder with Dip Cup: Announced [Date Not Available; online]. Retrieved [May 2, 2023]. URL: <https://www.indiamart.com/proddetail/fries-holder-with-dip-cup-stand-11676516162.html> (Year: 2023).

Alibaba.com. Black Disposable Divided Food Trays. [site visited Mar. 3, 2017]. Available from Internet, <URL:<https://thai.alibaba.com/product-detail/black-disposable-divided-food-trays-plastic-1238104653.html>>, Oct. 17, 2013, 9 pages.

Amazon. Food Containers 3 Compartment Premium. [site visited Mar. 8, 2018]. Available from Internet, <URL:https://www.amazon.com/dp/807_41_BQMY7/ref=sspa_dk_detail_2?psc=1&pd_rd_i=B0741BQMY7&pd_rd_wg=gDStp&pd_rd_r=ACEV1YJAC97ZZPCCXWCW&pd_rd_w=XZKtg>. (Year: 2017).

Large Food Box with dip pot holder [online] Retrieved Dec. 18, 2020 from URL: <https://gmpacking.co.uk/collections/carboard-food-packaging/products/large-food-box-with-dip-pot-holder>.

Amazon.com, “50 Paper Food To Go Containers—51 oz.—New Design With Waist Seal Bank—Eco Friendly Disposable Kraft Paper Take Out Food Container—Sturdy Leak and Grease Proof Microwavable Take Away Boxes”, retrieved from Web on Nov. 5, 2019, available on <https://www.amazon.com/Paper-Food-Containers-Disposable-Microwavable/dp/B07M74VWXW>, 6 pages.

Amazon, “Southern Champion Tray 23133K Kraft Paperboard Lock Corner Window Bakery Box”, [site visited Nov. 12, 2015], Mar. 15, 2013, 1 page.

Blair Candy, Empty candy boxes, available Oct. 121, 2013, [on line], [site visited Oct. 30, 2015]. Available from internet, <URL: <http://NWW.blaircandy.com/emcabo.html>.

Dean Supply. Disposable Takeout Containers. 2018 [earliest online date], [site visited Mar. 8, 2018]. Available from Internet, <URL: <https://www.shopatdean.com/collections/disposable-takeout-containers-foam-paper-plastic-compostable/rectangular>>. (Year: 2018).

Flex Active Sports. Buy 3-Compartment Food Prep Containers. Jan. 5, 2016 [earliest online date], [site visited Apr. 17, 2017]. Available from Internet, <URL:<http://flexactivesports.com/buy-3-compartment-food-prep-containers/>>.

Glynn, Robin; Origami treasure chest {YouTube}, available Nov. 29, 2010, [on line], [site visited Oct. 30, 2015]. Video available from internet, <URL: <https://www.youtube.com/watch?v=WpgGqeBQvj4>. Inno-Pak. Innobox Edge Insert. Oct. 25, 2016 [earliest on line date], [site visited Feb. 2, 2017]. Available from Internet, <URL: <http://www.innopak.com/product/food-service/take-out-packaging/innobox-edge-insert/>>.

Southern Champion Tray 0761 #1. [online] Published date unknown. Retrieved on Jul. 13, 2017 from <URL: <https://www.importitall.co.za/Southern-Champion-Tray-0761-1-ChampPak-Retro-TakeOut-Container-Kraft-Paperboard-with-Poly-Coated-Inside-438-L--ap-BOODTNBD70.html>>.

Southern Champion Tray 0764 #4. [online] Published date unknown. Retrieved on Jul. 13, 2017 from <URL: <https://www.importitall.co.za/Southern-Champion-Tray-0764-4-ChampPak-Retro-TakeOut-Container-Kraft-Paperboard-with-Poly-Coated-Inside-734-L--ap-BOODE035YG.html>>.

Kalifornia Love. Jul. 28, 2010 [earliest on line dale], [site visited Nov. 4, 2016]. Available from Internet, <URL: <http://www.kalifornialove.com/2010/07/extra-fruit-sensations-sweet-watermelon.html>.

Nearof! Review: Stride Spark Vitamin Chewing Gum. Sep. 7, 2011 [earliest on line dale], [site visited Nov. 4, 2016]. Available from Internet, <URL:<http://www.nearof.com/?p=540>>.

Robives; Curved lid box, available Nov. 2, 2013, [online], [site visited Oct. 30, 2015]. Available from internet, <URL: <http://www.robves.com/category/tags/highlight?page=3>.

Splash Packaging, Natural Kraft Windowed Boxes, available Oct. 4, 2014, [online], [site visited Dec. 111, 2015]. Available from internet, <URL: <http://www.splashpackaging.com/Natural-Kraft-Window-Bakery-Boxes>.

Delaware Gazette, Inno-Pak is Staying Put, available Jun. 13, 2015, [on line], [site visited Dec. 111, 2015]. Available from internet, <URL: <http://delgazette.com/news/295/innopak-is-staying-put>.

Webstaurant Store. Cambro 9113CW414 Camwear Teal 9"x11" 3 Compartment Meal Delivery Tray. Mar. 14, 2010 [earliest online date], [site visited Apr. 17, 2017]. Available from Internet, <URL:<http://www.webstaurantstore.com/cambro-9113cw414-camwear-teal-9-x-11-3-compartment-meal-delivery-tray-24-case/2149113CWTE.html>>.

WebstaurantStore.com Choice 7³/₄"x5¹/₂"x2" Kraft Microwavable Folded Paper #2 take-out Container—200/case, retrieved from the web on Nov. 5, 2019, available on <https://www.webstaurantstore.com/choice-8-1-2-x-6-x-2-kraft-microwavable-folded-paper-2-take-out-container-case/795PTOKFT2.html>, 6 pages.

Westrock, “Fold-Pak—Bio-Plus Earth”, retrieved from the web on Nov. 5, 2019, available on <http://www.fold-pak.com/products/BioPlusEarth.htm>, 2 pages.

Youtube. Inno-Pak Rigid Microwavable Take Out Containers. Sep. 17, 2014 [earliest online date], [site visited Feb. 2, 2017]. Available from Internet, <URL:https://www.youtube.com/watch?time_continue=28&v=WolGFg_sHISKY>.

(56)

References Cited

OTHER PUBLICATIONS

A Packaged Deal [online] Published Aug. 11, 2018. Retrieved from
URL: <https://www.hospitalitynewsmag.com/en/event/a-packaged-deal/>.

* cited by examiner

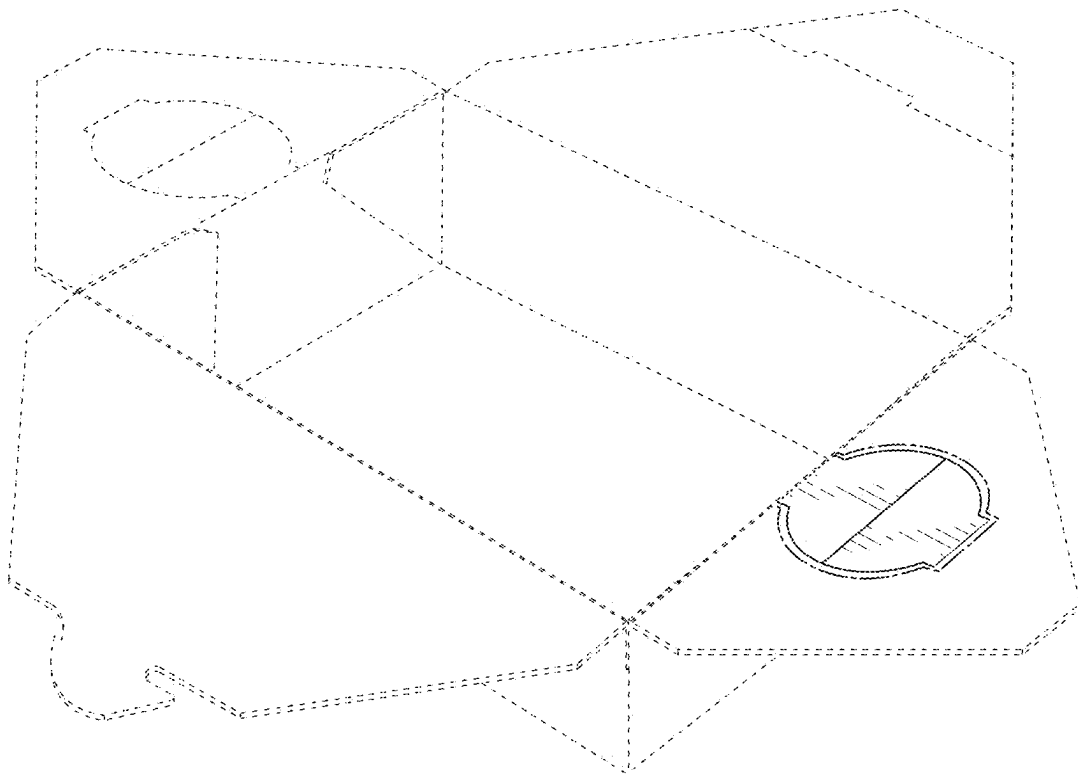


FIG. 1

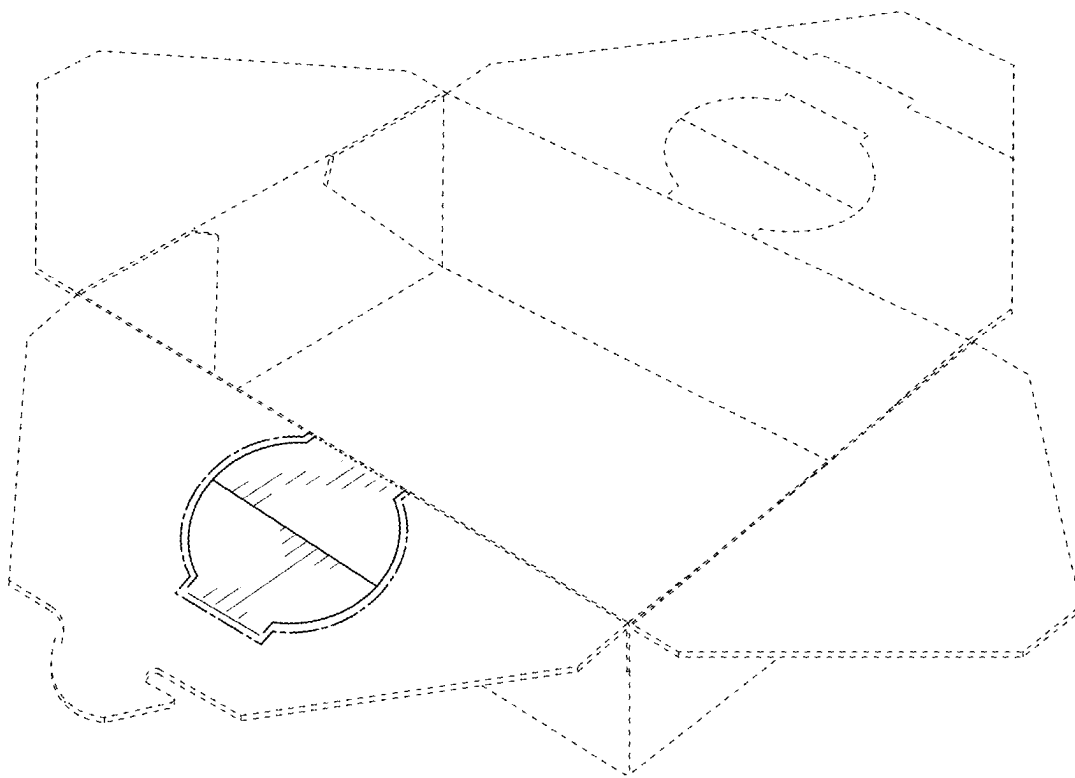


FIG. 2

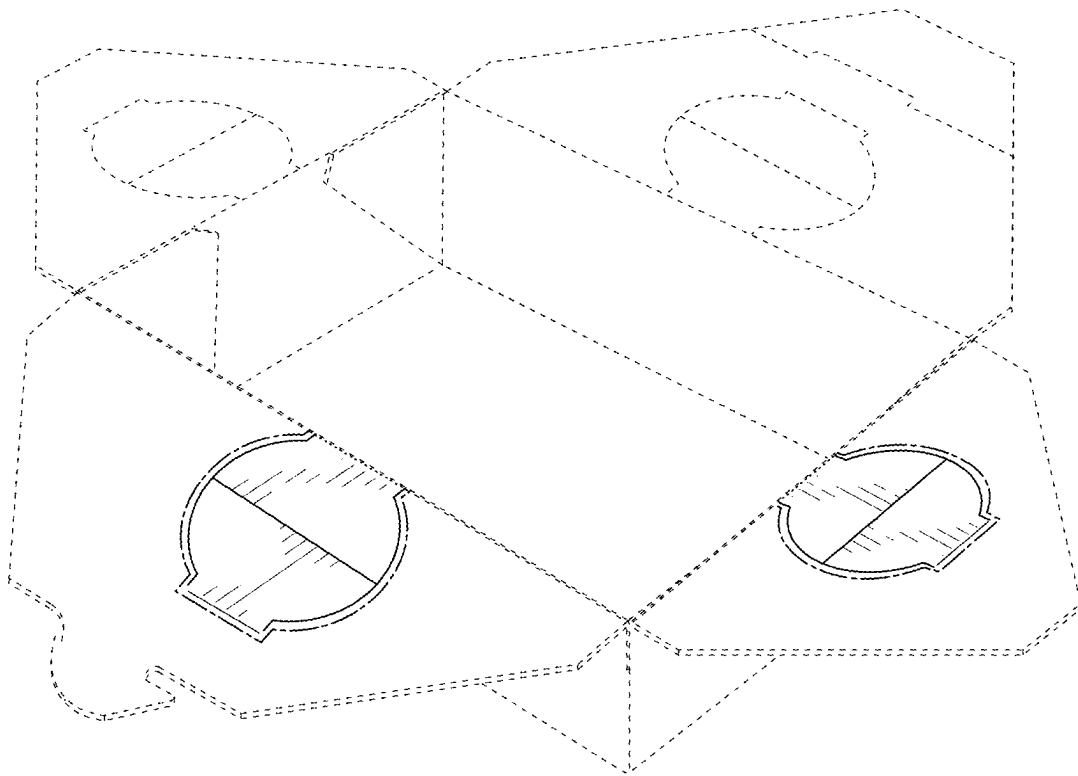


FIG. 3